Banks P. Miller

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Academic Appointments

The University of Texas at Dallas, Political Science and Public Policy

- Professor, September 2023–present
- Associate Professor, September 2015–August 2023
- Assistant Professor, August 2009–August 2015

Administrative Appointments

- Program Head, Political Science, 2018–2019 and 2025–present
- Program Head, Public Policy and Political Economy, 2018–2019 and 2025–present
- Associate Dean of Outreach and Recruitment, School of Economic, Political and Policy Sciences, 2024–2025
- Associate Dean of Graduate Education, School of Economic, Political and Policy Sciences, 2019–2020
- Director of Graduate Studies and Associate Program Head, Political Science, 2014–2018

Education

- Ph.D., Political Science, The Ohio State University, 2009
- J.D., The University of Texas School of Law, 2004
- B.A., History, Hendrix College, 2001

Research

Books

1. Miller, Banks, and Brett Curry. 2019. *U.S. Attorneys, Political Control, and Career Ambition*. Oxford University Press. Reviewed in *Law & Politics Book Review*.
2. Miller, Banks, Linda Camp Keith, and Jennifer Holmes. 2015. *Immigration Judges and U.S. Asylum Policy*. Pennsylvania Studies in Human Rights. University of Pennsylvania Press. Reviewed in *International Migration Review*, *Law & Politics Book Review*, *LSE Review of Books*, and *International Journal of Refugee Law*.

Articles and Book Chapters

1. Miller, Banks, and Brett Curry. 2026. "Ideology and the Scope of Judicial Discretion: Evidence from the Federal District Courts." *The Journal of Law, Economics, and Organization*, ewag028. doi:10.1093/jleo/ewag028.
2. Miller, Banks, and Brett Curry. 2026. "From Prosecutor to Partner: Revolving Door Incentives in Federal White-Collar Prosecutions." *Journal of Law and Courts*. Published online April 7, 2026. doi:10.1017/jlc.2026.10016.
3. Peinhardt, Clint, and Banks P. Miller. 2026. "Dissenting for Career Advancement: How Arbitrators Use Disagreement to Increase Their Chances of Appointment." *Journal of International Economic Law* 29(2): 226–245. doi:10.1093/jiel/jgag010.
4. Miller, Banks, Brett Curry, and Maureen Stobb. 2026. "The Politics of Presidential Pardons: Partisan Differences in Modern Clemency Decisions." *Social Science Quarterly* 107(2): e70133. doi:10.1111/ssqu.70133.
5. Stobb, Maureen, Banks Miller, and Brett Curry. 2026. "Tradeoffs and Spillovers in U.S. Criminal Immigration Enforcement." *Policy Studies Journal* 54(1): e70046. doi:10.1111/psj.70046.
6. Curry, Brett, and Banks Miller. 2024. "Exploring the Influence of Wealth on Judicial Decision Making." *Social Science Quarterly* 105: 1193–1204.
7. Bayram, A. Burcu, and Banks Miller. 2023. "Influencing Enforcement: The Application of International Law in Independent Judiciaries—The Case of the Alien Tort Statute." *Political Research Quarterly* 76: 1959–1972.
8. Miller, Banks, and Brett Curry. 2023. "When Advocates Become Adjudicators: Tracing the Effects of Prosecutorial and Public Defense Experience on Judicial Decision Making." *American Politics Research* 51: 796–804.

9. Stobb, Maureen, Banks Miller, and Josh Kennedy. 2023. "Mixed Messages and Bounded Rationality: The Perverse Consequences of REAL ID for Immigration Policy." *Policy Studies Journal* 51: 667–684.
10. Stobb, Maureen, Banks Miller, and Josh Kennedy. 2023. "Who Controls the Immigration Bureaucracy? The Relative Influence of the Three Branches over Asylum Policy Implementation." *American Politics Research* 51: 235–246.
11. Miller, Banks, and Brett Curry. 2022. "Leveled Odds? Attorney Capability, Team Litigation, and Outcomes in Administrative Patent Cases." *Law & Policy* 44: 388–407.
12. Curry, Brett, and Banks Miller. 2022. "The Influence of Diversity and Qualifications in Presidential Nominations: The Case of United States Attorneys." *Justice System Journal* 42: 252–270.
13. Miller, Banks, and Brett Curry. 2022. "To Stay or Not to Stay: Patent Litigation in the Federal District Courts." *Journal of Law and Courts* 10: 167–188.
14. Miller, Banks, Brett Curry, and Josh Kennedy. 2021. "The Role of Advisory Committees in Bureaucratic Oversight: The Case of AGAC." *Congress & the Presidency* 48: 195–218.
15. Gray, Thomas, and Banks Miller. 2021. "Swineherds and Hogs on Ice: Leadership Impacts for State Chief Judges." *American Politics Research* 49: 319–327.
16. Curry, Brett, and Banks Miller. 2020. "American Prosecutors as Principals and Agents." *Oxford Research Encyclopedia of Politics*. Oxford University Press. doi:10.1093/acrefore/9780190228637.013.1987.
17. Miller, Banks, Jennifer S. Holmes, and Linda Camp Keith. 2020. "The Preferences of Political Elites and Humanitarian Immigration to the United States." *RSF: The Russell Sage Foundation Journal of the Social Sciences* 6: 150–161.
18. Miller, Banks, and Brett Curry. 2018. "Haphazard, Systematic, or Both? An Empirical Investigation of the United States Attorney Firings in 2006." *Journal of Law and Courts* 6: 379–403.
19. Curry, Brett, and Banks Miller. 2017. "Case Citation Patterns in the U.S. Courts of Appeal and the Legal Academy." *Justice System Journal* 38: 164–182.
20. Miller, Banks, and Brett Curry. 2017. "Small-Group Dynamics, Ideology, and Decision Making on the U.S. Courts of Appeals." *Law & Policy* 39: 48–72.
21. Curry, Brett, and Banks Miller. 2015. "Judicial Specialization and Decision Making in the U.S. Courts of Appeals." *Law & Social Inquiry* 40: 29–50.
22. Miller, Banks, Linda Camp Keith, and Jennifer Holmes. 2015. "Leveling the Odds: The Effect of Quality Legal Representation in Cases of Asymmetrical Capability." *Law & Society Review* 49: 209–239.
23. Keith, Linda Camp, Banks Miller, and Rachel McGuire. 2015. "Second-Order Evaluations of the European Court of Human Rights." *Journal of Law and Courts* 3: 67–93.
24. Keith, Linda Camp, Banks Miller, and Jennifer Holmes. 2015. "How Draconian Are Changes to U.S. Asylum Law? A Monthly Time Series Analysis (1990–2010)." *Human Rights Quarterly* 37: 153–187.
25. Miller, Banks, Linda Camp Keith, and Jennifer Holmes. 2014. "Beyond Grant or Deny: A More Nuanced Ordering of U.S. Asylum Outcomes." *Judicature* 97: 172–178.
26. Miller, Banks, and Brett Curry. 2013. "The Effect of Per Se Recusal Rules on Donor Behavior in Judicial Elections." *Justice System Journal* 34: 125–151.
27. Keith, Linda Camp, Jennifer Holmes, and Banks Miller. 2013. "Explaining Divergence in Asylum Grant Rates Among Immigration Judges: An Attitudinal and Cognitive Approach." *Law & Policy* 35: 261–289.
28. Miller, Banks, and Brett Curry. 2013. "Experts Judging Experts: Agency Review on a Specialized Court." *Law & Social Inquiry* 38: 55–71.
29. Miller, Banks. 2010. "Describing the State Solicitors General." *Judicature* 93: 238–246.
30. Miller, Banks, and Brett Curry. 2009. "Expertise, Experience, and Ideology on a Specialized Court: The Case of the Court of Appeals for the Federal Circuit." *Law & Society Review* 43: 839–864.
31. Scherer, Nancy, and Banks Miller. 2009. "The Federalist Society's Impact on the Federal Judiciary." *Political Research Quarterly* 62: 366–378.
32. Curry, Brett, and Banks Miller. 2009. "Looking for Law in All the Wrong Places? Foreign Law and Support for the U.S. Supreme Court." *Politics & Policy* 36: 1094–1124.

Edited and Instructional Publications

- Brunell, Thomas, Robert Lowry, Banks Miller, and Thomas Gray. 2022. *State & Local Government*. Top Hat Monocle Corp.
- Brunell, Thomas, Robert Lowry, Banks Miller, and Thomas Gray. 2022. *Introduction to American National Government*. Top Hat Monocle Corp.
- Miller, Banks, and Jennifer Holmes, eds. 2017. *Readings in American State and Local Government*. Kendall Hunt.

- Miller, Banks, and Jennifer Holmes, eds. 2017. *Readings in American National Government*. Kendall Hunt.

Other Publications

- Miller, Banks. 2022. Review of *The Politics of Federal Prosecution*, by Christina L. Boyd, Michael J. Nelson, Ian Ostrander, and Ethan D. Boldt. *Law & Politics Book Review* 31: 148–150.
- Curry, Brett, and Banks Miller. 2019. "It Is Not Just Paul Manafort. This Is Why White-Collar Criminals Often Evade Harsh Punishment." *Washington Post*, March 18.
- Miller, Banks. 2014. Review of *Lives in the Balance: Asylum Adjudication by the Department of Homeland Security*, by Andrew Schoenholtz, Phillip G. Schrag, and Jaya Ramji-Nogales. *Law & Politics Book Review* 24: 558–562.
- Miller, Banks. 2005. "Mississippi v. Johnson." In *Encyclopedia of the Supreme Court*, edited by David Schultz. Facts on File.

Work in Progress

- Clint Peinhardt and Banks Miller. *Arbitrators in ISDS Cases*.
- Banks Miller and Brett Curry. *The Wealth of Federal Judges*.
- Banks Miller and Brett Curry. *Attorneys' Fees*.
- Maureen Stobb, Banks Miller, and Josh Kennedy. *Immigration Policy and Immigration Adjudication*.
- Thomas Gray and Banks Miller. *Court Coalitions and State Chief Judges*.

Research Data

Replication data for *Immigration Judges and U.S. Asylum Policy*: doi:10.7910/DVN/26474.

Research and Teaching Interests

Judicial politics; judicial decision making; lawyers; legal policy, especially immigration and patents.

Invited Presentations

- "Mixed Messages and Bounded Rationality: The Perverse Consequences of REAL ID for Immigration Policy." *Art of Science* podcast, September 2023.
- "Ex Ante Discrimination in the U.S. Refugee System." Russell Sage Foundation, April 2019.
- "Social Disruption in Germany and the U.S." American Council on Germany and DFW World Affairs Council, March 2019.
- "Immigration Judges and U.S. Asylum Policy," with Linda Camp Keith and Jennifer Holmes. School of Public Policy and Department of Political Science, University of California, Riverside, March 2016.
- "Immigration Judges and U.S. Asylum Policy," with Linda Camp Keith and Jennifer Holmes. Administrative Conference of the United States, April 2015.

Conference Presentations

- "Enforcement of Human Trafficking Laws in the States," with Maureen Stobb and Brett Curry. Midwest Political Science Association, 2025.
- "Dissents by Arbitrators in ISDS Cases," with Clint Peinhardt. Midwest Political Science Association, 2025.
- "Presidential Pardons," with Brett Curry and Maureen Stobb. Midwest Political Science Association, 2025.
- "Customary International Law in U.S. Courts," with A. Burcu Bayram. American Political Science Association, 2022.
- "Special Nominees: United States Attorneys and Federal Judicial Selection," with Brett Curry. Southern Political Science Association, 2019.
- "Here Today, Gone Tomorrow: Progressive Ambition and the Behavior of United States Attorneys," with Brett Curry. Southern Political Science Association, 2018.
- "Principals and Prosecutors: U.S. Attorneys and the Enforcement of Criminal Policy," with Brett Curry. American Political Science Association, 2017.
- "Monitoring of U.S. Attorneys," with Brett Curry. Southern Political Science Association, 2017.
- "Substantive/Descriptive Representation on the Bench: How Does the Public View Decisions Based on the Race of the Judge?" with Nancy Scherer. American Political Science Association, 2015.
- "Ideology, Judicial Specialization, and the Diffusion of Precedent," with Brett Curry. Western Political Science Association, 2015.
- "Integrating Local Context into a Cognitive Model of Asylum Decision Making," with Linda Camp Keith and Jennifer Holmes. Midwest Political Science Association, 2014.

- "Evaluating the European Court of Human Rights," with Linda Camp Keith and Rachel McGuire. Southern Political Science Association, 2014.
- "Quality Representation in Asylum Hearings," with Linda Camp Keith and Jennifer Holmes. Southern Political Science Association, 2014.
- "Repeat Campaign Contributors and Decision Making in the U.S. Supreme Courts," with Bennet Min and Brett Curry. Midwest Political Science Association, 2013.
- "The Influence of Specialization and Ideology on Appellate Court Decision Making in Antitrust Cases," with Brett Curry. Midwest Political Science Association, 2012.
- "Perceptions of the Efficacy of the U.S. Courts," with Nancy Scherer. Midwest Political Science Association, 2012.
- "Judicial Disqualification and Campaign Contributions in the U.S. States: The Case of Alabama." American Political Science Association, 2011.
- "Subject Matter Expertise and Judging on the U.S. Courts of Appeals." Law and Society Association, 2011.
- "Understanding Subject Matter Expertise on the D.C. Circuit Court of Appeals," with Brett Curry. Midwest Political Science Association, 2010.
- "Experts Judging Experts: The Role of Expertise in Reviewing Agency Decision Making," with Brett Curry. Southern Political Science Association, 2010.
- "Experts in Crime: The Effect of an Exclusively Criminal Docket on Judicial Behavior," with Dino Christenson and Brett Curry. Southern Political Science Association, 2009 and 2011.
- "State Solicitors in State Litigation." American Political Science Association, 2008.
- "State Success in State Supreme Courts." State Politics Conference, 2008.
- "State Success in State Supreme Courts." Midwest Political Science Association, 2008.
- "Reassessing the Voting Behavior of Minority and Female Judges on the Federal Bench," with Nancy Scherer and Brett Curry. Midwest Political Science Association, 2008.
- "Decision Making on the Federal Circuit Court," with Brett Curry. Southern Political Science Association, 2008.
- "The Supreme Court, Foreign Law, and Its Consequences for Public Support," with Brett Curry. Midwest Political Science Association, 2007.
- "The Federalist Society's Impact on the Federal Bench," with Nancy Scherer. Midwest Political Science Association, 2006.

Teaching Experience

All courses taught at The University of Texas at Dallas.

- Honors Reading: Authoritarianism in America (undergraduate), 2019
- Law and Courts Proseminar (graduate), 2011–2019 and 2021–present
- Judicial Politics (undergraduate), 2010–2016 and 2020–present
- Introduction to American Government (undergraduate), 2010–2013 and 2020–present
- Constitutional Law (undergraduate), 2019–present
- Constitutional Law (graduate), 2009–2015
- Law and the Policy Process (graduate), 2009–2016 and 2019–present
- Law, Science, and Policy (undergraduate), 2015–2017 and 2021–present
- American Politics Proseminar (graduate), 2021–present

Professional Activities and Service

- Member, Faculty Personnel Review Committee, School of Economic, Political and Policy Sciences, UT Dallas, 2023–2024
- Member, Committee on Education Policy, UT Dallas, 2022–present
- Member, Texas Transfer Advisory Committee for Political Science, Texas Higher Education Coordinating Board, 2022–2025
- Member, EPPS Faculty Advisory Committee, 2021–2022
- Chair, judicial politics faculty search, 2021
- Member, EPPS dean search committee, 2019
- Member, Ad Hoc Committee on Study Abroad, UT Dallas, 2019
- Chair, comparative judicial politics faculty search, 2017
- Chair, judicial politics faculty search, 2016
- Member, American politics faculty search, 2016
- Director of Graduate Studies and Associate Program Head, Political Science, UT Dallas, 2014–2018
- Member, Political Science Program Committee, UT Dallas, 2009–2011 and 2013–2018
- Member, Committee on the Core Curriculum, UT Dallas, 2016–2018

- Member, Intellectual Property Advisory Committee, UT Dallas, 2015–2019
- Member, Auxiliary Services Committee, UT Dallas, 2014–2015
- Member, EPPS Academic Review and Scholarship Committee, UT Dallas, 2014–2016
- Member, EPPS Committee on Effective Teaching, UT Dallas, 2010–2012
- Member, Law and Courts Field Exam Committee and Political Science Core Exam Committee
- Mock court and moot trial judge, UT Dallas, 2009–2017
- Referee, Social Science Research Council Pre-Dissertation Proposal Development Fellowship competition, 2015–2016

Manuscript, proposal, and book reviewing: National Science Foundation Law and Social Sciences program (ad hoc); Oxford University Press; University of California Press; Routledge; *American Journal of Political Science*; *American Politics Research*; *American Political Science Review*; *Electoral Studies*; *European Sociological Review*; *International Organization*; *Journal of Law and Courts*; *Journal of Law & Policy*; *Journal of Politics*; *Justice System Journal*; *Law & Society Review*; *Policy Studies Journal*; *Political Research Quarterly*; *Publius*; and *State Politics & Policy Quarterly*.

Grants and Proposals

- National Science Foundation, proposal to study decision making at the Board of Immigration Appeals, submitted August 2025.
- Russell Sage Foundation, proposal to study judicial wealth and decision making, fall 2021; not awarded.
- NEC Foundation of America, proposal to study technical interventions to reduce gun violence, summer 2019; not awarded.
- EPPS Alumni Council Research Grant, UT Dallas, to gather data on Board of Immigration Appeals decision making, spring 2015; awarded.
- EPPS Alumni Council Research Grant, UT Dallas, to gather data on campaign contributions to state supreme court judges, summer 2012; awarded.
- National Science Foundation, proposal to gather information on immigration judges' decision making, fall 2011; not awarded.
- Dean's Seed Grant, UT Dallas, to gather data on immigration judges and asylum officers, fall 2011; awarded.
- Catalyst Grant, UT Dallas, to study judicial decisions and campaign contributions, summer 2010–summer 2011; awarded.

Awards and Honors

- Special Faculty Development Assignment, UT Dallas, spring 2018
- UT Dallas EPPS nominee, University of Texas System Regents' Outstanding Teaching Award, tenure-track faculty category, 2012
- Nominee, EPPS Outstanding Teaching Comet Award, 2012–2013, 2013–2014, and 2014–2015
- APSA Travel Grant, 2008
- Prestage-Cook Travel Grant, Southern Political Science Association, 2008
- Dissertation Improvement Grant, Alumni Grants for Graduate Research and Scholarship, The Ohio State University, 2008
- Graduate Fellow, American Academy of Political and Social Science, 2007–2008
- University Fellowship, The Ohio State University, 2004–2005
- Associate Editor, *Texas Law Review*, 2003–2004
- Member, *Texas Law Review*, 2002–2003
- Dean's Achievement Award in Social Science and the Law, The University of Texas School of Law, 2004

Professional Memberships

- American Political Science Association, 2004–present
- Midwest Political Science Association, 2006–present
- Southern Political Science Association, 2007–present
- State Bar of Texas, inactive member, 2004–present
- Center for Interdisciplinary Law and Policy Studies, Moritz College of Law, The Ohio State University, 2004–2009